

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALESSANDRO ATES SARRIS,

Petitioner

VS.

DIA DIMA DEGAMO ATES SARRIS,

Respondent

) Case Number: FDI-26-803076

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER EMERGENCY FUNDS FOR OPERATIONAL & MEDICAL SATABILITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alessandro Ates Sarris and Respondent Dia Dima Degame Ates Sarris.
- 2) On 5/27/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 12/13/20 and date of separation is "TBD."
- 3) On 7/17/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 12/13/20 and date of separation is 10/29/25 for a marriage of 4 years and 11 months.
- 4) On 7/21/26, Respondent filed an ex parte Request for Order seeking guideline temporary spousal support, exclusive use and control of the marital residence (851 Van Ness Avenue, Unit 107, San Francisco) for 60 days with Petitioner ordered to maintain the carrying costs, \$5,000 in attorney's fees and costs, orders requiring Petitioner to "execute administrative documents" for Respondent's business and appointment of an elisor if he fails to do so, and an advancement of \$10,000 in community funds. Respondent asserts she faces homelessness as she was forced to vacate the marital residence due to safety concerns, whereas Petitioner owns property in Italy where he can reside. Respondent states she is undergoing intensive clinical treatment for Post Traumatic Stress

1 Disordered (PTSD). Respondent contends that Petitioner controls all community assets and joint
2 accounts, and she has no liquid funds to pay her expenses including essential medical and
3 therapeutic treatments. Respondent attached an Income and Expense Declaration indicating she
4 earns \$0 in average monthly income and has \$7,000 in monthly expenses.

5 5) On 7/21/26, the Court denied Respondent's request for emergency relief pending hearing set on
6 shortened time for 8/6/26.

7 6) On 7/31/26, Petitioner filed a Request to Reschedule Hearing due to improper service that was
8 denied. See Order on Request to Reschedule Hearing filed 7/29/26.

9 7) On 8/4/26, Petitioner filed a Responsive Declaration in opposition to Respondent's requests.
10 Petitioner states he advanced Respondent \$3,000 in June 2026. Petitioner disputes that
11 Respondent left the marital residence for safety reasons and asserts that she could have lived in
12 the second bedroom. Petitioner asserts that Respondent voluntarily left a high paying job in June
13 of 2025 (earned \$164,825 in 2024) to pursue a startup, which Petitioner incurred \$31,000 in debt
14 to support. Petitioner states the parties maintained separate finances during marriage including
15 insurance coverage. Petitioner states the marital residence is worth approximately \$788,000 -
16 \$799,000 and the parties' equity is between \$35,397.22 - \$46,387.22.

17 8) On 8/5/26, Respondent filed an Income and Expense Declaration.

18 **B. Findings and Order**

19 1) Respondent's request for guideline temporary monthly spousal support is GRANTED.

20 2) In accordance with the XSpouse report attached hereto and incorporated herein, Petitioner shall
21 pay Respondent \$3,335 per month in guideline monthly spousal support effective 7/21/26. This
22 balance is due on the 1st of every month commencing 9/1/26.

23 3) The XSpouse report is based on the parties' respective Income and Expense Declarations and
24 imputation of Respondent's expenses (\$7,000 - \$200 paid by others) as income given that she has
25 been maintaining such expenses since separation in October 2025.

26 4) This means that Petitioner owes Respondent \$4,410.80 in temporary monthly spousal support
27 arrears for the period of 7/21/26 – 8/31/26 (\$1,075.80 for July + \$3,335 for August). Petitioner
28 shall pay this balance in full by 8/31/26.

- 1 5) Respondent's request for exclusive use and control of the marital residence (851 Van Ness
2 Avenue, Unit 107, San Francisco) for 60 days with Petitioner ordered to maintain the carrying
3 costs is DENIED.
- 4 6) Respondent's request for \$5,000 in attorney's fees and costs is DENIED as the Court finds there
5 is no disparity in access to funds after support is paid given that Petitioner carries significant
6 community debt.
- 7 7) Respondent's request for orders requiring Petitioner to "execute administrative documents" for
8 Respondent's business and appointment of an elisor if he fails to do so is DENIED.
- 9 8) Respondent's request for an advancement of \$10,000 in community funds is DENIED.
- 10 9) The Court will prepare the Findings and Order After Hearing.